Pradesh government sat for over 10 months on the six names recommended by the state high court in 2017. "If the state government doesn't give any comment within six weeks of the receipt of the recommendations from the high court, the recommendations are deemed approved. However, because the state government did not give any opinion, by default the Union law ministry did not forward the recommendations to the Supreme Court," says Chelameswar.

On paper, the President is bound to appoint SC and HC judges if the apex court collegium reiterates a particular name after considering the government's objection. However, there are enough instances when despite the collegium reiterating names, appointment orders have not been issued. In February, advocate Aaditya Sondhi finally withdrew his consent for elevation as a judge in the Karnataka HC. The SC collegium had recommended his name on February 4, 2021, and reiterated it on September 1 last year. Yet, the proposal remained pending with the Union government. As the names of the judges who get rejected often get leaked into the public domain—as was seen in the recent instance of 20 names being rejected—many promising lawyers and lower court judges are now wary of giving consent to their names being recommended as higher court judges.

Recently, the Centre asked the SC collegium to reconsider its reiterated recommendation to elevate senior advocate Saurabh Kirpal, who openly identified himself as gay, as a Delhi High Court judge. According to sources, the reason cited for the rejection is not Kirpal's sexual orientation but the security risk his European partner could pose. Last year, while addressing the Lok Sabha, Rijiju said that the Centre could not blindly accept the recommendations made by the Supreme Court collegium for judicial appointments.

WHY THE COLLEGIUM IS CRITICISED

The collegium system has attracted a fair share of criticism. Critics point to the lack of transparency in the system, especially the absence of publicly disclosed reasons for why a candidate is suitable/ unsuitable for appointment. Though the resolutions of the collegium are uploaded on the Supreme Court website, they offer little explanation on why someone is recommended. In response to an RTI appeal seeking the rationale behind collegium resolutions to not be made public, the apex court held that while the final opinion can be disclosed, the personnel data or details cannot be furnished as it violates the right to privacy and the principle of confidentiality. "Their decisions are, at times, as unpredictable as the English weather. Several judges have been superseded in the past three decades. Many of the seniormost chief justices of various high courts were not elevated," says constitutional law expert Faizan Mustafa.

For example, in January 2018, the collegium recommended that Justice K.M. Joseph, then the Chief Justice of the Uttarakhand High Court, be appointed to the apex court even though he was 42nd in the all-India seniority list. The collegium did not explain the basis on which Justice Joseph was considered best suited. Following rejection from the Union government, his name was reiterated by the collegium after which Justice Joseph was elevated to the top court in August 2018.

Questionable decisions have also been taken on the extension of terms of additional judges or their elevation as permanent judges. Article 224 of the Constitution says the President can appoint additional judges if there is any temporary increase or arrears of work in the high court. On January 20, 2021, the Supreme Court Collegium recommended that Justice Pushpa Virendra Ganediwala, an additional judge in the Bombay High Court, be appointed as permanent judge. This despite the fact that she had faced massive outrage over a controversial decision in 2020 when she acquitted an accused under the POCSO Act saying that there was no skin-to-skin contact with sexual intent. Later, the top court withdrew the recommendation.

Many critics claim that the collegium system promotes nepotism—uncle judge syndrome—overlooking claims of better-suited lawyers. For instance, questions were raised in 2019 when Vishal Mishra, the younger brother of Justice Arun Mishra, who was then a sitting SC judge, was elevated as a judge of the Madhya Pradesh High Court. Though Justice Arun Mishra was not part of the collegium deciding high court appointments, the Madhya Pradesh HC was his parent high court. The norm is also that Supreme Court judges from the particular high court are consulted on appointments. More importantly, Vishal Mishra was below the mandatory age of 45 years when he was recommended in September 2018.

Earlier in 2013, Gujarat High Court Chief Justice Bhaskar Bhattacharya complained that the then CJI Altamas Kabir had blocked his elevation to the Supreme Court because, as a member of the collegium of the Calcutta High Court, Bhattacharya had opposed the appointment of Kabir's lawyer sister Shukla Kabir

HOW THE COLLEGIUM FUNCTIONS

Judicial appointments in the Supreme Court and high courts are governed by the Memorandum of Procedure (MoP), a collaborative framework prepared in 1998. The process for appointment of high court judges begins with the high court collegium—a body comprising the chief justice and other senior judges—recommending names for appointment. The recommendations are then sent to the state government, the Intelligence Bureau (IB) and the Union law ministry. Once cleared, the ministry forwards them to the Supreme Court collegium, consisting of the Chief Justice of India and other senior SC judges—for approval. The SC collegium sends the final recommendations to the law ministry. In case the government has any reservations, the name(s) are returned to the collegium for reconsideration. If it reiterates its recommendations, the Centre is bound to make the appointments. Though certain timelines have been fixed for various stages of the appointment process, these are not followed by any of the players involved. Besides, critics point to the lack of transparency in the system, especially on the criteria for appointments and the absence of publicly disclosed reasons for why a person was found suitable for appointment.